

RESOLUTION NO. 2018-1

A RESOLUTION EXPRESSING CONCERNS REGARDING THE PUBLIC HEALTH, SAFETY AND WELFARE AND IN SUPPORT OF CITIZEN CONCERNS RELATED TO THE PROPOSED VULCAN CONSTRUCTION MATERIALS' ROCK CRUSHING QUARRY OPERATION LOCATED NEAR HIGHWAY 46 AND FM 3009, NEAR GARDEN RIDGE, COMAL COUNTY, TEXAS.

WHEREAS, the City Commission of the City of Spring Branch has received numerous inquiries related to Vulcan Construction Materials' proposal to establish rock crushing quarry operations at a site near Highway 46 and FM 3009, Comal County, Texas; and

WHEREAS, residents of Comal County have enlisted the aid of legislators for Comal County in making their concerns about the proposed operations known to the Texas Commission on Environmental Quality; and

WHEREAS, the residents and surrounding communities are concerned about the negative impacts on the quality of life in the community and the environment, especially the air and water quality in the area; and

WHEREAS, the residents and surrounding communities are concerned about the negative impact and disruption created by the increased heavy truck traffic traversing the City and County, as well as the profound noise, exhaust emissions, and dust pollution created near the traffic corridors used in the rock crushing operations; and

WHEREAS, the residents and surrounding communities are concerned about the deterioration and destruction of infrastructure caused by the overburdening of the roadways from increased heavy truck traffic; and

WHEREAS, the residents and surrounding communities are concerned about the noise and air pollution, and disturbance of the peace, quiet and serenity of the residential areas of the community caused by the rock crushing operations and the heavy truck hauling activities to and from the site; and

WHEREAS, the residents and surrounding communities are concerned about the negative effects of blasting created by ground vibrations and air overpressures, even when blasting does not exceed federal mining guidelines; and

WHEREAS, it is wholly fitting that this body support its residents and neighbors by formally discouraging the development and location of the rock crushing quarry operations at the site currently proposed;

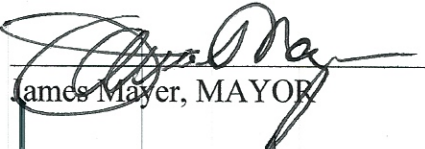
NOW THEREFORE, BE IT RESOLVED BY THE CITY COMMISSION FOR THE CITY OF SPRING BRANCH THAT:

1. The City Commission supports the concerns of its local residents and neighbors in the proposed development and the location of the Vulcan Rock Crushing Quarry Operations in the Comal County community.
2. The City Commission urges all Comal County legislators to work together to address concerns with the proposed operations and urging TCEQ to conduct a contested case hearing on Permit Application #147392L001.
3. The City Commission urges all Comal County residents to submit comments about the permit application to: Texas Commission on Environmental Quality, Office of the Chief Clerk, MC-1-5, Post Office Box 13087, Austin, Texas 78711-3087, or electronically at https://www.tceq.texas.gov/permitting/business_permitting.html.

PASSED AND RESOLVED THIS 13th day of February 2018.

Attest:


JoAnna Langston, City Clerk


James Mayer, MAYOR